

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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SILVIO SPALLONE,

Plaintiff,

- against -

THE CITY OF NEW YORK, NEW YORK CITY
DETECTIVE BRENDAN PARPAN NEW YORK
CITY POLICE OFFICER MARTIN
GUILFOYLE, and NEW YORK CITY POLICE
DETECTIVE BECKMAN.

Defendants.

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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED, to serve a notice of appearance on the Plaintiff's Attorney within twenty ("20") days after the service of this Summons, exclusive of the day of service (or within thirty ("30") days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the notice set forth below.

Dated: Great Neck, New York
May 28, 2014

Date Summons Filed: 5/30/14

The basis of venue is:
Residence of Defendant

Defendant resides in
the County of New York



ANDREW J. WIGER, ESQ.
Attorney for Plaintiff
98 Cutter Mill Road
Suite 486 South
Great Neck, New York 11021
(516) 466-4767

NOTICE: THE OBJECT OF THIS ACTION AND THE RELIEF SOUGHT BY THE PLAINTIFF HEREIN ARE AS FOLLOWS: To recover from the Defendants, jointly and severally, for the relief sought in the attached Complaint. The relief sought by Plaintiff is a money judgment in an amount exceeding the jurisdictional limits of all lower Courts otherwise having jurisdiction, plus punitive damages, plus interest, court costs and disbursements, along with such other and further relief as the Court may deem just and proper.

DEFENDANT RESIDES AT:

City of New York **NYC Detective Brendan Parpan**
Legal Department 105th Precinct
100 Church Street 9208 222nd Street
New York, New York Queens Village, New York 11428

NYC PO Martin Guilfoyle
105th Precinct
9208 222nd Avenue
Queens Village, New York 11428

NYC Detective Bekman
105th Precinct
9208 222nd Avenue Queens Village, New York 11428

$$\text{-----}X$$

Plaintiff,

- against -

Defendant.

VERIFIED COMPLAINT

PRELIMINARY STATEMENT

THE PARTIES TO THE ACTION

5. At all relevant times, Defendant, NEW YORK CITY POLICE OFFICER MARTIN

GUILFOYLE, was a Police Officer, employed by The New York City Police Department, acted in his capacity as a NYPD Police Officer and under color of law.

6. At all relevant times, Defendant, NEW YORK CITY POLICE DETECTIVE BECKMAN was a Detective employed by The New York City Police Department, and acted in his capacity as a NYPD Detective and under color of law.

PLAINTIFF'S NOTICE OF CLAIM

6. On June 28, 2013, within ninety ("90") days after the claim herein sued upon arose, the Plaintiff, SILVIO SPALLONE, caused to be duly served on Defendant, THE CITY OF NEW YORK, in duplicate, by the Comptroller of the City of New York (the Officer duly authorized by said Defendants for the receipt of such notices), a written Notice Of Claim relating to this matter, said written Notice Of Claim being sworn to by the Plaintiff, and containing a statement in compliance with section 50-e of the General Municipal Law.

7. Said Notice Of Claim by Plaintiff on Defendant, THE CITY OF NEW YORK was received by Defendant, THE CITY OF NEW YORK on or about June 28, 2013.

8. At least thirty ("30") days have elapsed since said Notice Of Claim was so presented to Defendant, THE CITY OF NEW YORK for adjustment as aforesaid, and said Defendant has neglected or refused to make an adjustment or payment thereafter.

PLAINTIFF'S COMPLIANCE WITH REQUESTS FOR 50-H EXAMINATIONS

9. Defendant, THE CITY OF NEW YORK held an examination of Plaintiff under oath, pursuant to section 50-h of the General Municipal Law, on January 24, 2014.

TIMELINESS OF COMMENCEMENT OF ACTION

10. This Action has been commenced within one year and ninety days after the claim herein sued upon arose, pursuant to section 50-I of the General Municipal Law.

THE FACTS OF THIS ACTION

11. Upon information and belief, Plaintiff, SILVIO SPALLONE, on April 1, 2013, was Falsely Arrested by New York City Police Department ("NYPD") New York City Police Officer MARTIN GUILFOYLE (from the 105th Precinct), and/or New York City Detective BRENDAN PARPAN (from the 105th Precinct), New York City Detective Beckman, and other NYPD Officers/Detectives. Plaintiff, SILVIO SPALLONE was then falsely and improperly charged with Aggravated Harassment, with a Violation of an Order Of Protection and with Attempted Murder — all based on an allegations of Complainant, FRANK SPALLONE, and all without Probable Cause for said arrest and/or for such criminal charges by the aforesaid Persons acting on behalf of and/or for the New York City Police Department.

12. Upon information and belief, said arrest of Plaintiff, SILVIO SPALLONE, was made by the NYPD, by and through NYPD Police Officer MARTIN GUILFOYLE (from the 105th Precinct), and/or NYPD Detective BRENDAN PARPAN (from the 105th Precinct) and/or NYPD Detective Beckman, and other NYPD Officers/Detectives, without first conducting a proper or good faith investigation, despite the history of False Complaints to the NYPD by Complaint against Plaintiff, and such investigation would have shown (through readily available documentary evidence), that at the time said Attempted Murder allegedly took place at the Complainant, FRANK SPALLONE'S, premises (located at 147th Avenue in Jamaica Queens), Plaintiff, SILVIO SPALLONE, was in lower Manhattan having dinner with his Wife, same being demonstrated by documentary evidence, including a videotape of the Plaintiff, having dinner in lower Manhattan at the exact time of the alleged "attempted murder", as well as taxi receipts and restaurant credit card receipts (all which were readily available to the NYPD before the Plaintiff was arrested and prosecuted thereby).

13. Upon information and belief, despite said foregoing documentary evidence, and despite the NYPD having knowledge of the Complainant, Frank Spallone, making false allegations against the Plaintiff, the NYPD, did not properly investigate said crime, and in bad faith, led Plaintiff SILVIO SPALLONE to believe (through his Wife and Attorney) that he was not a suspect in said crime.

14. More specifically, the NYPD was prior to such arrest of the Plaintiff, informed that the Plaintiff, SILVIO SPALLONE and Complainant were involved in a heated civil litigation; that the Complainant, FRANK SPALLONE, had a history of threatening the Plaintiff (and his family) with violence; and had a practice of making false complaints to the Police and/or Courts for the purpose of harassing and intimidating Plaintiff, SILVIO SPALLONE. Despite said facts having been provided to the NYPD, such NYPD Officer and NYPD Detectives failed and refused to do any or a proper investigation prior to arresting and charging the Plaintiff, SILVIO SPALLONE, as aforesaid.

15. The Claim by Plaintiff, SILVIO SPALLONE, is for personal injuries suffered by him as a result of the false arrest of him as aforesaid, for bad faith, negligence, carelessness and recklessness of the NYPD, by and through the above-named Police Officers, Detectives, Parties, their agents, servants and/or employees, as well as due-to the willful and bad faith actions thereof; Defendants having falsely arrested and prosecuted Plaintiff, SILVIO SPALLONE, without first performing any investigation and/or in performing a bad faith investigation. Said investigation — if properly performed by the NYPD — would have revealed uncontroverted evidence proving that Plaintiff, SILVIO SPALLONE, could not have committed the crime complained-of as he was in a different place when said crime allegedly took place. Moreover, the NYPD was put "on notice" prior-to their arrest and prosecution of the Plaintiff, SILVIO

SPALLONE, that the Complainant had a history of falsely filing for Orders of Protection, and making false complaints, yet the NYPD still failed to act in good faith, failed to execute their jobs properly, failed to investigate the occurrence, and failed to investigate evidence that Plaintiff did not commit any crime. The NYPD also misled the Plaintiff, SILVIO SPALLONE (through his wife and Attorney), to believe that Claimant was not a suspect in such investigation. The NYPD further failed to supervise or properly train or oversee, its aforesaid Detectives and Police Officer, and failed to act in good faith or with probable cause.

16. As a direct result of the April 1, 2013 arrest of the Plaintiff, SILVIO SPALLONE, the Plaintiff was caused to spend some 24 hours in Police Custody while awaiting Arraignment.

17. As a result of the April 1, 2013 arrest of the Plaintiff, SILVIO SPALLONE, the Plaintiff was caused to incur substantial costs for the retention of a Criminal Defense Attorney and for the retention of Private Investigators.

18. As a result of the April 1, 2013 arrest of the Plaintiff, SILVIO SPALLONE, was caused to suffer public shame and ridicule, and his reputation was impaired and damaged.

FALSE ARREST OF THE PLAINTIFF

19. The Plaintiff hereby repeats and realleges all of the allegations contained in paragraphs "1" through "18" herein above, as though each and every allegation were set forth in its entirety herein.

20. Plaintiff, SILVIO SPALLONE, on April 1, 2013, was Falsely Arrested by New York City Police Department ("NYPD") Police Officer MARTIN GUILFOYLE (from the 105th Precinct), and/or Detective BRENDAN PARPAN (from the 105th Precinct) and/or New York City Police Detective Beckman and other NYPD Police Officers.

21. Plaintiff, SILVIO SPALLONE was then falsely and improperly charged with Aggravated Harassment, a Violation of an Order Of Protection and Attempted Murder — all without Probable Cause for said arrest and/or for such criminal charges by the aforesaid Persons acting on behalf of and/or for the New York City Police Department.

22. Upon information and belief, said arrest was made by the NYPD, without conducting any investigation and/or a proper or good faith investigation, which would have shown (through readily available documentary evidence offered to Defendants), that at the time said Attempted Murder allegedly took place at the Complainant's business, (located at 147th Avenue in Jamaica Queens), Plaintiff, SILVIO SPALLONE, was in fact in lower Manhattan having dinner with his Wife, same being supported with documentary evidence, including a videotape of Plaintiff, SILVIO SPALLONE, having dinner in lower Manhattan at the exact time of the alleged "attempted murder", along with taxi receipts and restaurant

credit card receipts (all which were readily available to the NYPD).

23. The Plaintiff, SILVIO SPALLONE, was conscious of his arrest and confinement.

24. The Plaintiff, SILVIO SPALLONE, did not consent to his arrest and confinement.

25. The foregoing arrest and confinement of the Plaintiff, SILVIO SPALLONE, was not privileged.

26. As a result of the conduct of Defendants, THE CITY OF NEW YORK, NYPD Police Officer MARTIN GUILFOYLE (from the 105th Precinct), and/or NYPD Detective BRENDAN PARPAN (from the 105th Precinct) and NYPD Detective Beckman and other NYPD Police Officers, as aforesaid, the Plaintiff, SILVIO SPALLONE, suffered injuries and tortuous conduct, including (without limitation) false arrest, false imprisonment loss of liberty, living under threat of loss of liberty, legal fees, loss of earnings, public humiliation and ridicule, shame, and severe emotional distress.

CAUSE OF ACTION PURSUANT TO SECTION 1983 of the U.S. CODE

27. The Plaintiff hereby repeats and realleges all of the allegations contained in paragraphs "19" through "26" herein above, as though each and every allegation were set forth in its entirety herein.

28. Plaintiff, SILVIO SPALLONE, on April 1, 2013, was Falsely Arrested by ("NYPD") Police Officer MARTIN GUILFOYLE (from the 105th Precinct), and/or NYPD Detective BRENDAN PARPAN (from the 105th Precinct) and/or NYPD Detective BECKMAN and other NYPD Police Officers.

29. Plaintiff, SILVIO SPALLONE was then falsely and improperly charged with Aggravated Harassment, a Violation of an Order Of Protection and Attempted Murder — all without Probable Cause for said arrest and/or for such criminal charges by the aforesaid Persons acting on behalf of and/or for the New York City Police Department (and without a warrant).

30. Upon information and belief, said arrest was made by the NYPD, without conducting any investigation and/or a proper or good faith investigation, which would have shown (through readily available documentary evidence, same being offered to Defendants), that at the time said Attempted Murder allegedly took place at the Complainant's business, (located at 147th Avenue in Jamaica Queens), Plaintiff, SILVIO SPALLONE, was in fact in lower Manhattan having dinner with his Wife, same being supported with documentary evidence, including a videotape of Plaintiff, SILVIO SPALLONE, having dinner in lower Manhattan at the exact time of the alleged "attempted murder", along with taxi receipts, and restaurant credit card receipts (all which were readily available to the NYPD).

31. Said investigation — if properly performed by the NYPD — would have revealed uncontroverted evidence proving that Plaintiff, SILVIO SPALLONE, could not have committed the crime complained-of as he was in a different place when said crime allegedly took place. Moreover, the NYPD

was put “on notice” prior-to their arrest and prosecution of the Plaintiff, SILVIO SPALLONE, that the Complainant had a history of falsely filing for Orders of Protection, and making false complaints, yet the NYPD still failed to act in good faith, failed to execute their jobs properly, failed to investigate the occurrence, and failed to investigate evidence that Plaintiff did not commit any crime. The NYPD also misled the Plaintiff, SILVIO SPALLONE (through his wife and Attorney), to believe that Claimant was not a suspect in such investigation. The NYPD further failed to supervise or properly hire, train or oversee, its aforesaid Detective and Police Officer, and failed to act in good faith or with probable cause.

32. The actions of the Defendants in effectuating the arrest were followed by Wrongful imprisonment and detention, undue delay in arraignment and numerous court appearances over several months, with the ultimate dismissal of all the charges.

32. Said Arrest and Conduct occurred by the Defendants acting under Color of State Law.

33. Said Arrest and Conduct as aforesaid deprived Plaintiff, SILVIO SPALLONE, of his rights, privileges, and immunities guaranteed under Federal Law and the United States Constitution. Defendants violated Plaintiffs Statutory and Constitutional Rights.

34. Defendants conduct violated the Plaintiff’s 4th Amendment Rights under the United States Constitution.

35. Said Arrest of the Plaintiff, SILVIO SPALLONE, was made without Probable Cause.

36. The foregoing arrest and confinement of the Plaintiff, SILVIO SPALLONE, was not privileged.

37. The Defendants actions in detaining the Plaintiff, was in violation of his due process rights and resulted from the City’s Policy and practice of causing, permitting and allowing arrests to be made without probable cause, investigation, and extended periods of detention.

37. The individual Defendants, NYPD Police Officer MARTIN GUILFOYLE (from the 105th Precinct), and/or NYPD Detective BRENDAN PARPAN (from the 105th Precinct) NYPD Detective BECKMAN and other NYPD Police Officers, are liable to Plaintiff in both an individual Capacity and as Employees of The New York City Police Department.

38. The Plaintiff, further asserts a “MONELL” claim against Defendant, THE CITY OF NEW YORK, including the CITY OF NEW YORKS, negligent hiring and failure to train, and Defendants Policies causing constitutional deprivation.

37. The Plaintiff, SILVIO SPALLONE, was conscious of his arrest and confinement.

38. The Plaintiff, SILVIO SPALLONE, did not consent to his arrest and confinement.

39. As a result of the conduct of Defendants, THE CITY OF NEW YORK, Police Officer

MARTIN GUILFOYLE (from the 105th Precinct), and/or Detective BRENDAN PARPAN (from the 105th Precinct) and other NYPD Police Officers, as aforesaid, the Plaintiff, SILVIO SPALLONE, suffered injuries and tortuous conduct, including (without limitation) false arrest, loss of liberty, living under threat of loss of liberty, emotional harm, legal fees, loss of earnings, mental anguish and suffering, public and personal humiliation and ridicule, shame, and severe emotional distress.

PLAINTIFF'S CLAIM FOR PUNITIVE DAMAGES

40. The Plaintiff hereby repeats and realleges all of the allegations contained in paragraphs "27" through "39" herein above, as though each and every allegation were set forth in its entirety herein

41. As a result of Defendants Actions/Conduct as described above, Defendant is liable to Plaintiff for Punitive Damages.

WHEREFORE, the Plaintiff, SILVIO SPALLONE, respectfully demands Judgment over and against the Defendants, THE CITY OF NEW YORK, NYPD Police Officer MARTIN GUILFOYLE (from the 105th Precinct), and/or NYPD Detective BRENDAN PARPAN (from the 105th Precinct) and other NYPD Police Officers, jointly and severally, in an amount exceeding the jurisdictional limits of all lower Courts otherwise having jurisdiction, along with such other and further relief as the Court may deem just and proper.

Dated: Great Neck, New York
May 9, 2014


ANDREW J. WIGNER, ESQ.
Attorneys for Plaintiff
98 CutterMill Road, Suite 486S
Great Neck, New York 11021
(516) 466-4767

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

SILVIO SPALLONE,

Plaintiff,

- against -

THE CITY OF NEW YORK, NEW YORK CITY
DETECTIVE BRENDAN PARPAN NEW YORK
CITY POLICE OFFICER MARTIN
GUILFOYLE, and NEW YORK CITY POLICE
DETECTIVE BECKMAN.

Defendant.

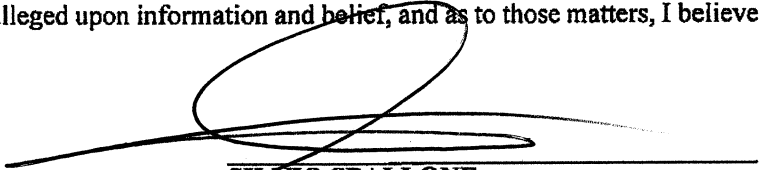
Index No.:

VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss.:

SILVIO SPALLONE, being duly sworn, depose and say that:

1. I am the Plaintiff in this Action.
2. I have read the foregoing Verified Complaint, and I know the contents thereof.
3. The contents of the foregoing Verified Complaint are true to my knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.


SILVIO SPALLONE

Sworn to before me, this
23 Day of May, 2014.


Notary Public

AMY L. TABOR
NOTARY PUBLIC, STATE OF NEW YORK
NO. 01TA5034628
QUALIFIED IN NASSAU COUNTY
COMMISSION EXPIRES OCT. 17, 20 14